Supreme Court, U.S.
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No. 98-897

In The

Supreme Court of the United States

October Term, 1998

ROBERT E. GABLE,

Petitioner,

v.

PAUL E. PATTON, A.B. CHANDLER, III, KENTUCKY REGISTRY OF ELECTION FINANCE, DONALD L. COX, MORRIS E. BURTON, JAMES E. BOYD and JOHN Y. BROWN, III,

Respondents.

On Petition For Writ Of Certiorari To The United States Court Of Appeals For The Sixth Circuit

RESPONDENT GOVERNOR PAUL E. PATTON'S BRIEF IN OPPOSITION

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PARTIES TO THE PROCEEDING

Kentucky Governor Paul E. Patton is one of several respondents in this Court. Other respondents are A.B. Chandler, III, Kentucky Registry of Election Finance, Donald L. Cox, Morris E. Burton, James E. Boyd, and John Y. Brown, III, all of whom, including Governor Patton, were defendant-appellees/cross-appellants below. The petitioner in this Court is Robert E. Gable, who was the plaintiff-appellant/cross-appellee below. Governor Patton has also filed a conditional cross-petition with this Court. Cross-respondents are Robert E. Gable, A.B. Chandler, III, Kentucky Registry of Election Finance, Donald L. Cox, Morris E. Burton, James E. Boyd, and John Y. Brown, III.

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OPINIONS BELOW

The Opinion of the court of appeals is reported at 142 F.3d 940 (6th Cir. 1998), and is attached to the Petition for a Writ of Certiorari at Appendix 1a. The Opinion of the district court is unreported and is attached to the Petition for a Writ of Certiorari at Appendix 28a.

JURISDICTION

The Brief in Opposition to Petition for Writ of Certiorari incorporates the Jurisdiction statement set forth in the Petition with the following addition. On December 17, 1998, William K. Suter, Clerk of the Court, granted the application of Respondent Governor Patton for an extension of time, through January 29, 1999, in which to file this brief in opposition.

CONSTITUTIONAL PROVISIONS AND STATUTES INVOLVED

Respondent Governor Patton concurs with the statement of Constitutional Provisions and Statutes Involved in the Petition.

STATEMENT OF THE CASE

Respondent Governor Patton incorporates herein the Statement of the Case as set forth in his Conditional

Cross-Petition docketed with the Court on December 30, 1998.

REASONS TO DENY WRIT

Review on a writ of certiorari is a matter purely of judicial discretion, to be granted only for the most compelling reasons. Petitioner Gable states that the questions raised in his Petition are ones of serious national importance. However characterized, the fact remains that these very questions were resolved fully and correctly in a court of appeals decision that comports entirely with precedents both from this Supreme Court and other circuits.

I. THE COURT OF APPEALS CORRECTLY FOLLOWED ESTABLISHED PRECEDENT IN HOLDING KENTUCKY'S TRIGGER PROVISION CONSTITUTIONAL.

In *Buckley v. Valeo*, 424 U.S. 1, 57 n.65 (1976), this Court sanctioned the use of public financing plans as a means for limiting a candidate's aggregate contributions and expenditures, which in turn works to combat actual and perceived corruption in the election process. As long as the plan is voluntary, and the candidate remains free to choose private financing over limited public financing, there is no First Amendment infringement on the rights of the candidate or supporters. *Id.*; *Republican National Committee v. Federal Election Commission*, 487 F. Supp. 280, 284 (S.D.N.Y.), *aff'd mem.*, 445 U.S. 955 (1980).

Years later, finding that a state has a compelling interest to stimulate participation in its public financing plans, federal courts agreed that states may, and often must, offer additional inducement to encourage candidates to accept voluntary spending limits. *Rosenstiel v. Rodriguez*, 101 F.3d 1544 (8th Cir. 1996); *Vote Choice, Inc. v. DiStefano*, 4 F.3d 26 (1st Cir. 1993). The Trigger provision in Kentucky's campaign finance law effectuates just such an inducement.

Clearly, the biggest obstacle to a campaign finance reform program and its attendant spending constraints is the very real fear of participant candidates that they will be vastly outspent by their limitless, privately financed opponents. The Kentucky Trigger provision operates to alleviate that concern for participant candidates by releasing them from their voluntarily accepted expenditure limit of $1.8 million if their nonparticipant opponents' contributions exceed that mark. As a further incentive, and reward for voluntarily limiting expenditures to that point, participant candidates continue to receive public subsidy after their opponents' contributions trigger the suspension of the limit.

The court of appeals correctly held that the Kentucky incentives were no different in kind than clearly constitutional incentives and therefore did not impermissibly burden the First Amendment rights of Petitioner. Pet. App. at 15a. To find otherwise, the court stated, "would be making a distinction based on degree," which the *Buckley* decision explicitly forbids. *Id.* Certainly the intent and effect of the Trigger is to make participation in public funding the preferred choice among candidates. But, as

the court of appeals aptly recognized, "a voluntary campaign finance scheme must rely on incentives for participation, which, by definition, means structuring the scheme so that participation is usually the rational choice." *Id.*

Gable disagrees with the court of appeals that participation in Kentucky's public financing program is a rational choice, arguing instead that participation is the only choice thereby leaving candidates "no choice at all." Pet. at 8-9. Nothing could be further from the truth. Voluntary public subsidy alternatives have vastly increased the options for campaign financing. To the extent Gable perceives his decision whether or not to accept public financing as a Hobson's choice endangering his First Amendment rights, such is a dilemma peculiar to him. As the Eighth Circuit explained in upholding a similar Minnesota trigger provision,

> In sum, the State has created a public financing scheme for certain elected offices which is available to candidates who meet certain threshold qualifications. This scheme presents candidates with an additional, optional campaign funding choice, the participation in which is voluntary. Under this choice-increasing framework, candidates will presumably select the option they feel is most advantageous to their candidacy. Given this backdrop, it appears to us that the State's scheme promotes, rather than detracts from, cherished First Amendment values.

Rosenstiel v. Rodriguez, 101 F.3d 1544, 1552 (8th Cir. 1996) (citations omitted). *See Buckley v. Valeo*, 424 U.S. 1, 92-93 (1976) ("[Public funding provisions are] a congressional effort, not to abridge, restrict or censor speech, but rather

to use public money to facilitate and enlarge public discussion and participation in the electoral process . . . ").

Extraordinarily contrary to his "no choice" lamentations, Gable in fact retains, at least up to the final pre-election reporting period, not just choices regarding the Trigger but sole control over whether it is activated. In *Rosenstiel*, a Minnesota trigger provision originally released a participating candidate from expenditure limitations at the moment his opponent opted out of the public finance program. The legislature amended the provision to, like Kentucky's Trigger, releasing the participant only if and when his opponent exceeds the voluntary expenditure cap. 101 F.3d at 1551. The Eighth Circuit sanctioned the change, noting the extent to which the amendment puts the nonparticipating candidate, such as Gable, squarely in the driver's seat.

> Rather than releasing the participating candidate from the expenditure limits at the outset, the statute as it now stands permits the nonparticipating candidate to control whether and when the participating opponent will be freed from the limits. Thus, in a sense, the amendment works in favor of, rather than to the detriment of, the nonparticipating candidate.

Id. (citing *Wilkinson v. Jones*, 876 F. Supp. 916 (W.D.Ky. 1995)).

It is therefore quite puzzling how Gable can complain that "the Kentucky trigger provision both fetters the constitutionally protected choices of candidates who forego public campaign subsidies and leaves such candidates worse off than they would have been without any public financing program at all." Pet. at 11. The fact that a candidate is now given the additional option to accept

public financing with its attendant trigger incentives and spending limitations cannot be said to "fetter" the private funding choice. Increased choices often require hard decisions. Candidates such as Gable are free to choose the alternative most advantageous to their particular campaign strategies. In that respect, First Amendment values are furthered, not smothered. *Vote Choice, Inc. v. DiStefano*, 4 F.3d 26, 29 (1st Cir. 1993). *See also Weber v. Heaney*, 793 F. Supp. 1438, 1457 (D. Minn. 1992) ("The First Amendment is not implicated where candidates remain free to choose between funding alternatives.").

Gable characterizes the Trigger incentive not as a carrot dangled by the state to lure candidates into public finance, admittedly constitutionally acceptable, but as a "substantial stick" designed to inflict on nonparticipants the "pain of Kentucky's publicly-financed retaliation." Pet. at 8-9. Courts have viewed such distinctions, even when expressed less dramatically, as more "semantic than substantive." *Vote Choice*, 4 F.3d at 38. The Trigger provision is, in reality, simply "a premium earned by meeting statutory eligibility requirements rather than a penalty imposed on those who either cannot or will not satisfy the requirements." *Id.*

Gable points to no explicit statutory restrictions on the amount of funds a nonparticipating candidate can raise. Instead, he claims to experience the penalty, the burden, the coercion, the "chill" on his constitutional rights by watching the benefits enjoyed by his publicly financed opponent. Courts have resoundingly rejected such a "benefits equal burdens" argument. The *Rosenstiel* Court explains the fallacy of Gable's position in the context of Minnesota's trigger provision:

> These inducements, however, do not per se render the State's scheme coercive because they are not inherently penal. Further, the inclusion of these additional inducements in the State's public financing package does not cause the package to become so benefit-laden as to create such a large disparity between benefits and restrictions that candidates are coerced to publicly finance their campaigns. Rather, by including these additional inducements, the State's scheme achieves a relative balance between the benefits provided to publicly financed candidates and the restrictions the candidates must accept. The expenditure limitation waiver, which permits a publicly financed candidate to exceed the expenditure limits while retaining the public subsidy when opposed by a nonparticipating candidate who has spent or received contributions beyond the triggering amounts spelled out in the statute, is simply an attempt by the State to avert a powerful disincentive for participation in its public financing scheme: namely, a concern of being grossly outspent by a privately financed opponent with no expenditure limit. We believe the statute is not coercive because it permits the nonparticipating candidate to raise a certain measure of funds before triggering the expenditure limitation waiver for his participating opponent.

101 F.3d at 1549-1551. *See also Vote Choice, Inc. v. DiStefano*, 4 F.3d 26, 38 (1st Cir. 1993); *Republican National Committee v. Federal Election Commission*, 487 F. Supp. 280, 285 (S.D.N.Y.) (three-judge court), *aff'd mem.*, 445 U.S. 955 (1980); *Weber v. Heaney*, 793 F. Supp. 1438, 1457 (D. Minn. 1992).

The Trigger mechanism contained in Kentucky's campaign finance law does not in any way restrict the speech of a nonparticipant candidate, as Gable claims. It does, however, work to **un**-restrict the speech of the participant candidate. By removing the government-imposed shackle on subsidized candidates, the ultimate net effect of an activated Trigger is to increase "dissemination of information from diverse and antagonistic sources" thereby promoting, rather than burdening, First Amendment values. *New York Times Co. v. Sullivan*, 376 U.S. 254, 266 (1964).

II. THE COURT OF APPEALS CORRECTLY UPHELD THE 28 DAY TIMING WINDOW AS A CRITICAL COMPONENT TO KENTUCKY'S PUBLIC FINANCING SYSTEM.

The 28 Day Timing Window prohibits **any** slate of candidates for governor and lieutenant governor from knowingly accepting any campaign contribution after the final pre-election reporting deadline (twenty-eight days before a primary or general election, or fourteen days before a run-off primary), unless it or another slate has by that date reported contributions exceeding the $1.8 million voluntary expenditure limit. If the Trigger is pulled, **both** Nonparticipating and Participating Slates are permitted to accept contributions during the Window.

Gable equates the Window's restrictions to a ban on cheering in the final moments of a football game, a measure he suggests would "miss the very point of the enterprise." Pet. at 15. The problem with Petitioner's football analogy, of course, is that he wants the cheering at the

end of the game – or the eve of the election – to be *all* for him. Without the Window's timing restrictions, nonparticipant candidates like Gable would be able to blitz their expenditure-limited opponents with last-minute spending that could not be countered. Contrary to Gable's sports metaphor, the very point of the Window enterprise is not to ban speech at a critical period but to assure even-handed cheering that is reflective of the support for and views of **both** teams and/or candidates. *See Anderson v. Celebrezze*, 460 U.S. 779, 788 n.9 (1983) ("State has right to prevent distortion of electoral process by device of "party raiding," the organized switching of blocks of voters from one party to another in order to manipulate the outcome of the other party's primary election").

Truly, it is not the sheer number, but rather the diversity of views that ensures the "robust, democratic discussion" protected by the First Amendment. Gable's First Amendment rights are not burdened by a mechanism that assures a publicly financed candidate the opportunity to respond to last-minute, unreported contributions and accordingly to maintain meaningful participation in the election process. Without such an assurance, few candidates would agree to participate in Kentucky's campaign financing program designed to prevent corruption and preserve public confidence in the election process. The court of appeals correctly upheld the 28 Day Timing Window insofar as it applies to third party contributions.[1]

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[1] Governor Patton disagrees with the distinctions drawn by the court of appeals in upholding the law's restrictions on third party contributions but striking down restrictions on contributions made by the candidate himself, and requests this Court's review on the issue in his Conditional Cross-Petition.

CONCLUSION

Respondent Governor Patton respectfully requests that the Court deny the Petition which seeks review on the constitutionality of the Trigger provision and application of the 28 Day Timing Window to outside contributions.[2]

Respectfully submitted,

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[2] As submitted in Governor Patton's Conditional Cross-Petition, should the Court determine that Petitioner Gable has presented compelling reasons for review on these two questions, then the Court should also re-examine the constitutionality of the 28 Day Timing Window as it applies to a candidate's contribution to his own campaign. Further, Respondent/Cross-Petitioner Governor Patton notes that on January 25, 1999, this Court granted certiorari in *Nixon v. Shrink Missouri Government PAC*, 98-963. To the extent this Court determines the Kentucky law at issue in this Petition and Conditional Cross-Petition would be impacted by the Court's ultimate decision in *Nixon* and accordingly grants certiorari in this case, Respondent/Cross-Petitioner Governor Patton respectfully requests that certiorari be such that would allow him the opportunity to be heard on these issues so vital to Kentucky's interest in preventing corruption and preserving public confidence in its state elections through campaign finance reform.

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